

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3691

 By: Provenzano of the House

5 and

6 **Standridge** of the Senate

7
8
9 AS INTRODUCED

10 An Act relating to driver licenses; amending 47 O.S.
11 2021, Section 6-103, as amended by Section 40,
12 Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025, Section
13 6-103), which relates to persons not to be licensed;
14 removing certain description of persons not to be
15 licensed; amending 47 O.S. 2021, Section 6-106, as
16 last amended by Section 5, Chapter 11, O.S.L. 2024
17 (47 O.S. Supp. 2025, Section 6-106), which relates to
18 application for license; modifying type of
19 information required for driver license application;
20 and providing an effective date.

21
22
23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 47 O.S. 2021, Section 6-103, as
 amended by Section 40, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
 Section 6-103), is amended to read as follows:

 Section 6-103. A. Except as otherwise provided by law, Service
 Oklahoma shall not issue a driver license to:

1 1. Any person who is under eighteen (18) years of age, except
2 that Service Oklahoma may issue a Class D license to any person who
3 attains sixteen (16) years of age on or after August 15, 2000, and
4 meets the requirements of Sections 6-105 and 6-107.3 of this title;

5 2. Any unemancipated person who is under eighteen (18) years of
6 age and whose custodial legal parent or legal guardian does not
7 approve the issuance of a license as required by Section 6-110.2 of
8 this title or objects to the issuance of a license or permit by
9 filing an objection pursuant to Section 6-103.1 of this title;

10 3. Any person whose driving privilege has been suspended,
11 revoked, canceled or denied in this state or any other state or
12 country until the driving privilege has been reinstated by the state
13 or country withdrawing the privilege;

14 4. Any person who is classified as an excessive user of
15 alcohol, any other intoxicating substance, or a combination of
16 alcohol and any other intoxicating substance, and inimical to public
17 safety, in accordance with rules promulgated by the Department of
18 Public Safety, until all requirements granting or reinstating
19 driving privileges are met, including, but not limited to,
20 abstinence from the use of alcohol, any other intoxicating
21 substance, or any combination of alcohol and any other intoxicating
22 substance for a minimum of either twelve (12) months or eighteen
23 (18) months, as determined by OAC 595:10-5, immediately preceding
24

1 application for or application for reinstatement of driving
2 privileges;

3 5. Any person who is required by Section 6-101 et seq. of this
4 title to take an examination, unless the person shall have
5 successfully passed the examination;

6 6. Any person who is required under the laws of this state to
7 deposit proof of financial responsibility and who has not deposited
8 such proof;

9 7. Any person ~~who is physically deformed or~~ who is afflicted
10 with any mental disease or physical condition that would impair the
11 driving ability of the person or when the Commissioner of Public
12 Safety, from information concerning the person or from the records
13 and reports on file in the Department of Public Safety, determines
14 that the operation of a motor vehicle by such person on the highways
15 would be inimical to public safety or welfare;

16 8. Any person who is a nonresident, as defined in Section 1-137
17 of this title;

18 9. Any alien unless such person presents valid documentation of
19 identity and authorization for presence in the United States issued
20 pursuant to the laws of the United States; provided, no license
21 shall be issued to any alien whose documentation indicates the alien
22 is a visitor or is not eligible to establish residency; or
23
24

1 10. Any person who possesses a valid license to operate a motor
2 vehicle issued by another state until the other state license has
3 been surrendered.

4 B. Any applicant who is denied a license under the provisions
5 of subsection A of this section shall have the right to an appeal as
6 provided in Section 6-211 of this title.

7 SECTION 2. AMENDATORY 47 O.S. 2021, Section 6-106, as
8 last amended by Section 5, Chapter 11, O.S.L. 2024 (47 O.S. Supp.
9 2025, Section 6-106), is amended to read as follows:

10 Section 6-106. A. 1. Every application for a driver license
11 or identification card shall be made by the applicant upon a form
12 furnished by Service Oklahoma.

13 2. Every original, renewal, or replacement application for a
14 driver license or identification card made by a male applicant who
15 is at least sixteen (16) but less than twenty-six (26) years of age
16 shall include a statement that by submitting the application, the
17 applicant is consenting to registration with the Selective Service
18 System. The pertinent information from the application shall be
19 forwarded by Service Oklahoma to the Data Management Center of the
20 Selective Service System in order to register the applicant as
21 required by law with the Selective Service System. Any applicant
22 refusing to sign the consent statement shall be denied a driver
23 license or identification card.

1 3. Except as provided for in subsections G and H of this
2 section, every applicant for a driver license or identification card
3 shall provide to Service Oklahoma at the time of application a
4 document showing proof of identity. Service Oklahoma shall
5 promulgate rules prescribing forms of identification acceptable for
6 an original Oklahoma driver license.

7 B. Every applicant for a driver license shall provide the
8 following information:

9 1. Full name;

10 2. Date of birth;

11 3. Sex;

12 4. Address of principal residence and county of such residence
13 which shall be referenced on the REAL ID Compliant Driver License or
14 Identification Card; proof of principal residency, as prescribed by
15 rules promulgated by Service Oklahoma, documenting provided address;

16 5. Current and complete mailing address to be maintained by
17 Service Oklahoma for the purpose of giving notice, if necessary, as
18 required by Section 2-116 of this title;

19 6. Medical information, as determined by the Department, which
20 shall assure Service Oklahoma that the person is not prohibited from
21 being licensed as provided by paragraph 7 of subsection A of Section
22 6-103 of this title. For Class D driver licenses only, a self-
23 certification that the applicant is medically able to drive safely
24 shall assure Service Oklahoma that the person is not prohibited from

1 being licensed as provided by paragraph 7 of subsection A of Section
2 6-103 of this title;

3 7. Whether the applicant is deaf or hard-of-hearing;

4 8. A brief physical description of the applicant, as determined
5 by ~~the Department~~ Service Oklahoma in conjunction with the
6 Department of Public Safety;

7 9. Whether the applicant has previously been licensed, and, if
8 so, when and by what state or country, and whether any license has
9 ever been suspended or revoked without subsequent reinstatement, or
10 whether an application has ever been refused without subsequent
11 acceptance, and, if so, the date of and reason for the suspension,
12 revocation or refusal;

13 10. Whether the applicant is an alien eligible to be considered
14 for licensure and is not prohibited from licensure pursuant to
15 paragraph 9 of subsection A of Section 6-103 of this title;

16 11. Whether the applicant has:

17 a. previously been licensed and, if so, when and by what
18 state or country, and

19 b. held more than one license at the same time during the
20 immediately preceding ten (10) years; and

21 12. Social Security number.

22 No person shall request Service Oklahoma to use the Social Security
23 number of that person as the driver license number. Upon renewal or
24 replacement of any driver license issued after the effective date of

1 this act, the licensee shall advise Service Oklahoma or the licensed
2 operator if the present driver license number of the licensee is the
3 Social Security number of the licensee. If the driver license
4 number is the Social Security number, Service Oklahoma or the
5 licensed operator shall change the driver license number to a
6 computer-generated alphanumeric identification.

7 C. 1. In addition to the requirements of subsections A and B
8 of this section, every applicant for a commercial driver license who
9 is subject to the requirements of 49 C.F.R., Part 391, and is
10 applying for an original, renewal, or replacement license, and every
11 person who, upon or after May 8, 2012, is currently the holder of a
12 commercial driver license and is subject to the requirements of 49
13 C.F.R., Part 391, and who does not apply for a renewal or
14 replacement license prior to January 30, 2014, shall submit to
15 Service Oklahoma and maintain with Service Oklahoma a current
16 approved medical examination certificate signed by a licensed
17 physician authorized to perform and approve medical examination
18 certifications. Service Oklahoma shall adopt rules for maintaining
19 medical examination certificates pursuant to the requirements in 49
20 C.F.R., Parts 383 and 384. Any commercial driver licensee subject
21 to the requirements of this paragraph who fails to maintain on file
22 with Service Oklahoma a current, approved medical examination
23 certificate shall have the driving privileges of the person
24 downgraded to a Class D driver license by Service Oklahoma.

1 2. If the applicant is applying for an original commercial
2 driver license in Oklahoma or is transferring a commercial driver
3 license from another state to Oklahoma, Service Oklahoma shall
4 review the driving record of the applicant in other states for the
5 immediately preceding ten (10) years, unless the record review has
6 already been performed by Service Oklahoma. As a result of the
7 review, if it is determined by Service Oklahoma that the applicant
8 is subject to a period of disqualification as prescribed by Section
9 6-205.2 of this title which has not yet been imposed, Service
10 Oklahoma shall impose the period of disqualification and the
11 applicant shall serve the period of disqualification before a
12 commercial driver license is issued to the applicant; provided,
13 nothing in this paragraph shall be construed to prevent the issuance
14 of a Class D driver license to the applicant.

15 3. If the applicant has or is applying for a hazardous material
16 endorsement, the applicant shall submit to a security threat
17 assessment performed by the Transportation Security Administration
18 of the Department of Homeland Security as required by and pursuant
19 to 49 C.F.R., Part 1572, which shall be used to determine whether
20 the applicant is eligible for the endorsement pursuant to federal
21 law and regulation.

22 4. Service Oklahoma shall notify each commercial driving school
23 of the passage of this section, and each commercial driving school
24

1 shall notify prospective students of its school of the hazardous
2 material endorsement requirement.

3 D. In addition to the requirements of subsections A and B of
4 this section, every applicant shall be given an option on the
5 application for issuance of a driver license or identification card
6 or renewal pursuant to Section 6-115 of this title to provide an
7 emergency contact person. The emergency contact information
8 requested may include full name, address, and phone number. The
9 emergency contact information shall be maintained by Service
10 Oklahoma and shall be used by Service Oklahoma and law enforcement
11 for emergency purposes only. A person listed as an emergency
12 contact may request to be removed at any time. Any update to a
13 change of name, address, or phone number may be made by the
14 applicant listing the emergency contact person or by the person
15 listed as the emergency contact.

16 E. Whenever application is received from a person previously
17 licensed in another jurisdiction, Service Oklahoma shall request a
18 copy of the driving record from the other jurisdiction and,
19 effective September 1, 2005, from all other jurisdictions in which
20 the person was licensed within the immediately previous ten (10)
21 years. When received, the driving record shall become a part of the
22 driving record of the person in this state with the same force and
23 effect as though entered on the driver's record in this state in the
24 original instance.

1 F. Whenever Service Oklahoma receives a request for a driving
2 record from another licensing jurisdiction, the record shall be
3 forwarded without charge.

4 G. A person shall not apply for or possess more than one state-
5 issued or territory-issued REAL ID Compliant Driver License or
6 Identification Card pursuant to the provisions of Section 6-101 of
7 this title. A valid and unexpired Oklahoma driver license shall
8 serve as both primary and secondary proofs of identity whenever
9 application for a REAL ID Noncompliant Identification Card is
10 submitted to Service Oklahoma. The provisions of subsection B of
11 Section 1550.42 of Title 21 of the Oklahoma Statutes shall not apply
12 when issuing an identification card pursuant to the provisions of
13 this subsection. Service Oklahoma shall promulgate rules necessary
14 to implement and administer the provisions of this subsection.

15 H. A valid and unexpired U.S. passport shall serve as both
16 primary and secondary proofs of identity whenever application for a
17 driver license or identification card is submitted to ~~the Department~~
18 Service Oklahoma. Service Oklahoma shall promulgate rules necessary
19 to implement and administer the provisions of this subsection.

20 SECTION 3. This act shall become effective November 1, 2026.
21

22 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
23 OVERSIGHT, dated 03/03/2026 - DO PASS, As Coauthored.
24